



Republic of the Philippines
Province of Sorsogon
MUNICIPALITY OF PRIETO DIAZ
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Office of the Sangguniang Bayan

MINUTES OF THE REGULAR SESSION OF THE 12TH SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON JULY 28, 2025 AT ITS SESSION HALL

PRESENT:

Hon. Avon D. Domalaon, MPA
Hon. Alexander D. Destura
Hon. Ryand D. Diño
Hon. Vicente B. Bayoca
Hon. Bienvenido D. Ayo, Jr.
Hon. Joseph H. Yap, Jr.
Hon. Jo Madel D. Domalaon
Hon. Juan D. Ebid
Hon. Lilia D. Oliveres
Hon. Antonio J. Emano, Jr.
Hon. Rene Joseph D. Domasian

Municipal Vice Mayor
S. B. Member/Presiding Officer Pro tempore
Sangguniang Bayan Member
Sangguniang Bayan Member
Sangguniang Bayan Member
Sangguniang Bayan Member
Sangguniang Bayan Member
Sangguniang Bayan Member
Sangguniang Bayan Member
LnB Pres./S. B. Member
SKMF Pres./S. B. Member

ABSENT: None

1 – CALL TO ORDER

The regular session was called to order by the regular Presiding Officer, Hon. Avon Domalaon at 8:30 in the morning.

2 – OPENING PRAYER

The opening prayer was led by Hon. Ryand Diño.

3 – ROLL CALL

The Secretary called the roll and reported back to the Chair there is a hundred percent attendance. Quorum therefore was established.

4 – READING AND APPROVAL OF THE PREVIOUS MINUTES

The verbatim reading of the minutes of the July 21, 2025 regular session was dispensed with upon motion of Hon. Antonio Emano, Jr., duly seconded by Hon. Juan Ebid. The Chair asked the august body for any corrections or amendments to the said minutes. Hon. Alexander Destura corrected on page 5, Committee Report No. 050-2025, that it should not have been reported since the findings is only that the hearing would be re-scheduled. Hon. Joseph Yap, Jr. defended that his committee did report it because they indeed conducted a committee hearing, however was cancelled due to lack of

quorum. He asked then the decision of the body. Hon. Alexander Destura suggested that the committee should not render report yet to the plenary if there is no quorum in a committee hearing and the committee decides to set it to another time. Hon. Antonio Emano, Jr. agreed to this suggestion and added that the committee chairman may verbally inform the plenary about the said re-scheduled hearing, and the body was amenable to it. Hon. Alexander Destura then moved to delete and cancel the said committee report and the body was amenable to it.

Having no other corrections, and upon motion of Hon. Antonio Emano, Jr., duly seconded by Hon. Juan Ebid and Hon. Jo Madel Domalaon, the minutes of the July 21, 2025 regular session was adopted and approved unanimously as amended.

At this juncture, the Chair informed the body that he has been appointed as the OIC Mayor effective July 28, 2025, therefore he is relinquishing the chair. Hon. Antonio Emano, Jr. nominated Hon. Alexander Destura, duly seconded by Hon. Juan Ebid, and the body was unanimously amenable to it. Thus, Hon. Alexander Destura assumed as the Presiding Officer Pro tempore.

5 – APPROVAL OF THE AGENDA

The Chair asked if there are additional inclusions to the Calendar of Business. Hereunder are the proposed inclusions, to wit;

- 5.1 by Hon. Jo Madel Domalaon: Draft Ordinance No. 2025-14: KADIWA Ordinance
- 5.2 by Hon. Lilia Oliveres: Resolution for RHU
- 5.3 by Hon. Bienvenido Ayo, Jr.: requirements for Zoning Clearance
- 5.4 by Hon. Juan Ebid: PCL Election on July 30, 2025

Having no other inclusions, and upon motion of Hon. Antonio Emano, Jr., duly seconded by Hon. Jo Madel Domalaon, the agenda for July 28, 2025 regular session was adopted and approved unanimously.

6 – REFERENCE OF BUSINESS

6.1 Proposed Ordinances:

- 6.1.1 Draft Ordinance No. 2025-12: AN ORDINANCE INSTITUTIONALIZING THE TAPAT AT LIGTAS NA PAMILIHANG PAMBARANGAY (TALIPAPA) PROJECT IN ALL BARANGAYS OF THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON, AND PROVIDING GUIDELINES FOR ITS IMPLEMENTATION AND ENFORCEMENT. Introduced by: Hon. Jo Madel D. Domalaon

Referred to the Committee on Agriculture and Committee on Barangay Affairs

- 6.1.2 Draft Ordinance No. 2025-13: AN ORDINANCE INSTITUTIONALIZING THE HALINA'T MAGTANIM NG PRUTAS AT GULAY (HAPAG) SA BARANGAY PROJECT IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON. Introduced by: Hon. Jo Madel D. Domalaon

Referred to the Committee on Agriculture and Committee on Barangay Affairs

6.2 Proposed Resolutions:

- 6.2.1 Draft Resolution No. 133-2025: A RESOLUTION AMENDING MUNICIPAL ORDINANCE NO. 2014-30, THE MUNICIPAL TRAFFIC AND TRANSPORTATION CODE OF 2015 OF THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON. Introduced by Hon. Alexander Destura

Referred to the Committee on Transportation and Committee on Rules

- 6.3 Petitions/Requests - none

- 6.4 Other Communications:

- 6.4.1 Endorsement from Barangay San Isidro re: Brgy. Ordinance No. 001-2025: *"Ordinance Prohibiting the Copra Buyer to Purchase of Copra and Coconut (Binook) from the Resident of Barangay San Isidro, who do not owned a Coconut Land or not a Tenant"*

Referred to the Committee on Brgy. Affairs and Committee on Rules

- 6.4.2 Endorsement from Barangay San Isidro re: Brgy. Ordinance No. 003-2025: *"Ordinance Prohibiting the People to destroy the CCTV Camera of the Barangay, any person that violate this ordinance there will be a violation"*

Referred to the Committee on Brgy. Affairs and Committee on Rules

- 6.4.3 Endorsement from Barangay San Isidro re: Brgy. Ordinance No. 004-2025: An Ordinance Limiting the Speed of all Motor Vehicles Traveling Within the Barangay Proper Roads to 20-30 kilometer per hour in Brgy. San Isidro"

Referred to the Committee on Transportation, Committee on Brgy. Affairs and Committee on Rules

7 – COMMITTEE REPORT

7. 1 Committee Report No. 052-2025 from the Committee on Appropriations re: Supplemental Budget No. 1 CY 2025 of Brgy. Talisayan

On motion of Hon. Antonio Emano, Jr., duly seconded by Hon. Juan Ebid, the said committee report was adopted and approved unanimously. Hon. Lilia Oliveres passed a resolution entitled: A RESOLUTION DECLARING AS OPERATIVE IN ITS ENTIRETY APPROPRIATION ORDINANCE NO. 2025-01 OF BARANGAY TALISAYAN, THIS MUNICIPALITY, REPRESENTING ITS SUPPLEMENTAL BUDGET NO. 1 CY 2025.

WHEREAS, this council is in receipt of the Supplemental Budget CY 2025 under Appropriation Ordinance No. 2025-01 of Barangay Talisayan, approved on June 21, 2025 by the Sangguniang Barangay, involving the amount of P352,261.60 only, submitted to this office on July 17, 2025;

WHEREAS, after technical review by the Municipal Budget Office, subject ordinance was found to have shown substantial compliance with the provisions of the Local Government Code of 1991 and other implementing circulars and issuances;

WHEREAS, this collegial body finds the said ordinance to be proper and in order, subject to the usual auditing and accounting laws, rules and regulations;

WHEREAS, on motion of Hon. Antonio J. Emano Jr., duly seconded by Hon. Juan D. Ebid;

NOW, THEREFORE, be it as it is;

HEREBY RESOLVED, to declare as operative in its entirety Appropriation Ordinance No. 2025-01 of Barangay Talisayan, representing its Supplemental Budget CY 2025;

FINALLY RESOLVED, to transmit this resolution to the Sangguniang Barangay of Talisayan through its Punong Barangay, Hon. Ma. Melissa B. Diolata; copy furnished Ms. Linda E. Lim, Municipal Budget Officer; Ms. Maribel A. Aldon, Municipal Accountant and all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

The said resolution was docketed as Resolution No. 132-2025.

8 – CALENDAR OF BUSINESS

- | | | | |
|-----|---------------------------------------|---|------|
| 8.1 | Unfinished Business | - | none |
| 8.2 | Business for the Day | - | none |
| 8.3 | Business for 2 nd Reading: | - | none |

9 – BUSINESS FOR THIRD AND FINAL READING- None

10 – OTHER MATTERS

- 10.1 Hon. Ryand Diño informed the body that Ms. Terelle Donor has informed him that the slab roof of the ICare Hub in Quidolog is already leaking. The Chair referred the said matter to the Committee on Infrastructure.

- 10.1 by Hon. Jo Madel Domalaon: Draft Ordinance No. 2025-14: AN ORDINANCE ESTABLISHING KATUWANG SA DIWA AT GAWA PARA SA MASAGANANG ANI AT MATAAS NA KITA (KADIWA) IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON

Referred to the Committee on Agriculture and Committee on Brgy. Affairs

- 10.2 by Hon. Lilia Oliveres: Resolution No. 134-2025: A RESOLUTION REQUESTING FOR FUND ALLOCATION FOR THE REPAIR OF LEAKING ROOF OF THE RURAL HEALTH UNIT OF PRIETO DIAZ, SORSOGON. Introduced by Hon. Lilia Oliveres

Referred to the Committee on Appropriations, Committee on Health and Committee on Public Works

- 10.3 by Hon. Bienvenido Ayo, Jr.: requirements for Zoning Clearance

Councilor Ayo informed the body of the several complaints raised by those applying for Zoning Clearance in the municipality, particularly on the requirement – “Affidavit of No Objection”, from the nearby residents or lot owners. He continued that it is only this year that the said requirement was included, much to the difficulty of those applying for the said clearance, especially, when the applicant is not in good terms with the adjacent lot owners / residents. He continued that there has to be an exception. He continued that as per information from the Municipal Engineering Office, for this year, only 3 applicants were able to acquire Zoning Clearance, and 20 more are pending with the Office of the Zoning Official. The Chair then referred the said matter to the Committee on Land Utilization, Planning and Housing.

10.4 by Hon. Juan Ebid: PCL Election on July 30, 2025

Councilor Ebid reminded the members of the upcoming PCL Election on July 30, 2025. The Chair reminded the members to show their support to Councilor Juan Ebid.

At this point, the Chair declared a recess. The session resumed at 9:25 in the morning.

10.5 At this juncture, Hon. Joseph Yap, Jr. informed the body that the Brgy. Ordinance of Gogon No. 01-2025: entitled “*An Ordinance Regulating the Use of Barangay Site (Lot 2408, Lot 2409, Lot 2410, Lot 2411) Governing Policies of Barangay Gogon, Prieto Diaz, Sorsogon*”, was referred to his committee last July 14, 2025. He continued that it has actually been reviewed and reported by the committee last May 26, 2025 (Committee Report No. 043-2025). He recalled that the committee has advised the barangay to specify the lot numbers in their ordinance, and they did at this time. He then passed a resolution entitled: A RESOLUTION DECLARING AS VALID BRGY. GOGON ORDINANCE NO. 01-2025 ENTITLED: *An Ordinance Regulating the Use of Barangay Site (Lot 2408, Lot 2409, Lot 2410, Lot 2411) Governing Policies of Barangay Gogon, Prieto Diaz, Sorsogon*”.

WHEREAS, the Sangguniang Bayan is in receipt of the said ordinance entitled: “*An Ordinance Regulating the Use of Barangay Site (Lot 2408, Lot 2409, Lot 2410, Lot 2411) Governing Policies of Barangay Gogon, Prieto Diaz, Sorsogon*”;

WHEREAS, the Committee on Land Utilization, Planning and Housing, after a committee hearing, reported to the plenary (Committee Report No. 043-2025) with the recommendation that the said ordinance should contain the specific lot numbers to avoid confusion in the future, and thus, was returned to the barangay for some amendments;

WHEREAS, the amended ordinance was then returned to this collegial body and was found to be, among others, within the powers of the Sangguniang Barangay;

WHEREAS, on motion of Hon. Antonio Emano, Jr., duly seconded by Hon. Juan Ebid;

NOW, THEREFORE, be it as it is;

HEREBY RESOLVED, to declare as valid Barangay Ordinance No. 01-2025 of Brgy. Gogon, Prieto Diaz, Sorsogon;

FINALLY RESOLVED, to transmit this resolution to the Sangguniang Barangay of GOgon through its Punong Barangay Kenn Anthony Domalaon, copy furnished all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

The said resolution was docketed as Resolution No. 135-2025.

10.6 At this juncture, Hon. Ryand Diño shared information gathered during the Executive Briefing conducted by the DILG, where it was reported by the MHO, Dr. Jenifer Bernaldez, that many of the health problems arise from water-borne diseases. He added that the SB must do something and come up with a solution and provide potable water system in the municipality. For that matter, he suggested revisiting the ordinance (Ordinance No. 2024-15) enacted by the 11th Sangguniang Bayan wherein it was proposed to leverage the services of a private entity to provide water services to the municipality. Hon. Juan Ebid agreed and suggested looking into the findings of the SP. Hon. Ryand Diño added that if Sorsogon City can avail of the services of Primewater (despite numerous complaints), why can't Prieto Diaz make use of the private entity available in the municipality. He added that provision of water is not only for compliance with SGLG, but rather a basic need of the people.

The Chair stated that if that is the concern of the SB, it may lobby with Governor Edwin Hamor when he comes on July 31, 2025, and the body was amenable to it. A resolution, introduced by the body was enacted entitled: A RESOLUTION RESPECTFULLY REQUESTING HON. GOVERNOR JOSE EDWIN HAMOR, TO ALLOCATE FUNDS IN THE AMOUNT OF FIFTY MILLION PESOS (P 50,000,000.00) FOR THE INSTALLATION OF A WATER SYSTEM IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON. The said resolution was docketed as Resolution No. 136-2025. Hon. Antonio Emano, Jr. agreed that the said matter should be elevated to Governor Hamor since one of the purposes of his visit is to know the needs of the people of Prieto Diaz. Hon. Alexander Destura further suggested appropriating funds for the water system, like every year from the MLGU budget, through the Committee on Appropriations. On the other hand, Hon. Juan Ebid maintained revisiting the previous ordinance (Ordinance No. 2025-15) since it is quite challenging for the LGU to operate a water system. He added that what happened to the city with Primewater does not mean would happen again to Prieto Diaz. He urged giving the interested private party a chance for the good of the people. Conversely, Hon. Lilia Oliveres stated that much as she wanted to inhibit herself because of her connection to the proponent of the subject ordinance, she stated that the SB needs to come up with a plan to respond to the need for a potable water system. She agreed revisiting the ordinance and work with the proponent for its improvement. She stressed that the progress of Prieto Diaz cannot be left behind because of the inavailability of a water system. The Chair then resolved that the said ordinance be revisited and all the recommendations to be complied with.

10.7 Endorsement from the Budget Officer re: Supplemental No. 1 of Perlas and SK Supplemental Budget No. 1 of Brillante and Lupi

Referred to the Committee on Appropriations

11 – ADJOURNMENT

Having no other matters to be taken up, and upon motion of Hon. Joseph Yap, Jr., duly seconded by Hon. Antonio Emano, Jr., the session was adjourned at 9:43 in the morning.

I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.


BERNADETTE R. ESPEÑA-YAO
Secretary to the Sangguniang Bayan

ATTESTED:


Hon. AVON D. DOMALAON, MPA
Municipal Vice Mayor

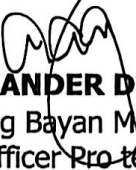
APPROVED:


Hon. RYAND D. DIÑO
Sangguniang Bayan Member


Hon. VICENTE B. BAYOCA
Sangguniang Bayan Member


Hon. BIENVENIDO D. AYO, JR.
Sangguniang Bayan Member


Hon. JOSEPH H. YAP, JR.
Sangguniang Bayan Member

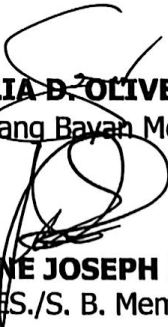

Hon. ALEXANDER D. DESTURA
Sangguniang Bayan Member
Presiding Officer Pro tempore


Hon. JO MADEL D. DOMALAON
Sangguniang Bayan Member


Hon. JUAN D. EBIDO
Sangguniang Bayan Member


Hon. LILIA D. OLIVERES
Sangguniang Bayan Member


Hon. ANTONIO J. EMANO, JR.
LnB PRES./S. B. Member


Hon. RENE JOSEPH D. DOMASIAN
SKMF PRES./S. B. Member